CNR: GANG02-002540-2013

SCS 52/2013/A

O R D E R BELOW (Exbt. D-4)

(Delivered on this the 13th day of the month of March, 2020)

This order shall dispose off the Application for Temporary Injunction filed by the Plaintiff at exhibit D-4.

2. The contents of said application is not reiterated herein as the order is typed below the said exhibit D-4.

3. In brief the defendants upon being served appeared and filed their affidavit in reply at exhibit D-17. Plaintiff filed affidavit in rejoinder at exhibit D-18. Defendant no. 1 and 2 field reply to affidavit in rejoinder at exhibit D-19. Both the parties relied on following documents :

(1) Copy of permission dated 08.10.2013 and 15.10.2013 obtained from Hon'ble Administrative Tribunal to the plaintiff to file the suit.

(2) The copy of Tombasao Book No.1 and Tombasao Book no.2 showing that the said property Saveli gali and Oros belong to the Communidade of Bambolim alongwith English translation..

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(3) Old survey plan (planta) is available in the office of Director of Settlement and Land Records Government of Goa alongwith New Survey plan of Village Bambolim.

(4) Copy of Form II (Area) Book of village of S.NO.89, 90/1 and 2, 93.

(5) Copy of the Govt. Gazette dated 02.09.1965 notification dated 18.08.1965 and award dated 30.03.1966.

(6) Copy of letter dated 26.02.1966.

(7) Copy of the Govt. Gazette dated 18.12.1969 notification dated 04.12.1969.

(8) Copy of Minutes of Auction dated 03.01.1971 of "OROS" and Minutes of Auction of "Saveli Gali" alongwith translation copy.

(9) Copy of orders in case no.CAJ/ARAC/PRC/10/EHD-11/71 and 18/1971 the order dated 20.12.1971, 10.12.1971 passed by the Mamlatdar of Tiswadi .

(10) Copy of the Govt. Gazette dated 15.01.1981 notification dated 31.12.1980 and Award LAO/386 dated 23.03.1981.

(11) Copy of the Judgment and Decree dated 06.08.1986 in Special Civil Suit no.127 and 128/A.

(12) Copy of applications for intervention, application for withdrawal filed by Maximo Mergulhao and judgment and order dated 15.01.1982.

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(13) Copy of the records of the year 1939 of payment of foros ground rent alongwith English Translation.

(14) The copy of the Award dated 22.11.1993, 24.12.2002 in LCA no. 104/1994.

(15) Copy of the Judgment dated 31.08.2000 in LAC 98/1987.

(16) Copy of the Judgment dated 24.08.1993 in LAC 9/1981 and 31.08.2000 in LAC 100/87.

(17) Copy of award of land Acquisition Officer dated 04.10.1985.

(18) Copy of Judgment dated 07.08.1995 in LAC No.96/1987.

(19) Copy of Judgment dated 07.06.1988 in W.P. No.2/1988.

(20) Copy of the said compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit no. 222/94/B before Civil Judge Senior Division at Panaji.

(21) Copy of Judgment dated 18.02.2009 in W.P. No.102/2009.

(22) Copy of Order dated 03.07.2009 in W.P. No.102/2009.

(23) Copy of Judgment dated 29.03.2012 in Writ Petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 and order of the Deputy Collector dated 01.08.2011 which is produced in Writ Petitions no.506/2009, 557/2009, 577/2009 and 657/2011.

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(24) Copy of letter dated 05.12.2012 and dated 09.10.2012.

(25) Copy of judgment and decree dated 11.04.2001 in Special Civil Suit No.15/2001/A.

(26) Copy of 3 Sale Deeds dated 25.04.2006 executed between defendant no. 1, 3 and 4.

(27) Plaintiff crave leave to refer and rely upon the sale deed dated 18.07.2007.

(28) Copy of compromise decree dated 25.01.2007 in Regular Civil Suit No.6/2007/C before Civil Judge Senior Division at Panaji.

(29) Copy of the Agreement for sale dated 29.08.1989.

(30) Copy of Sale deed dated 24.04.2006.

(31) Copy of Form I & XIV of survey no. 93/2, 3 and 4.

(32) Copy of public notice published in Navhind Times dated 31.01.2013 and reply dated 15.02.2013 and 21.02.2013.

(33) Copy of the survey report of Mr. Prazares Gonsalves.

4. Plaintiffs as well as defendant filed written synopsis which are at exhibit D-20 and D-21 as well as argued orally in length.

5. It is pertinent to note that the present suit as of now is being contested only by defendant no. 1 and 2 whereas defendant no. 3 to 9 are proceeding exparte.

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6. Points that arise for my determination and my findings thereon are as follows.

Points for determination	Findings
1. Whether the plaintiff proves that there is prima facie case infavour of the plaintiff ?	Affirmative
2.Whether irreparable loss will be caused to the plaintiff ?	Affirmative
3.In whose favour balance of convenience tilts ?	In favour of plaintiff.

REASONS

Point no. 1

7. In order to prove prima facie case in favour of the plaintiffs, Ld. Advocate for the plaintiffs contended that the Sale Deed of defendant no.3 in favour of defendant no. 1 and 2 is void as consent decree was obtained by fraud in SCS No.222/94/B.

8. Per contra Ld. Advocate Shri R. Rao for the defendant no. 1 and 2 contended that defendant no. 1 and 2 are bonafide purchasers and they have purchased from defendant no. 3 after the consent decree was passed and hence disputed that the suit properties bearing survey no. 93/2, 93/3 and 93/4 of Village of Bambolim in Tiswadi Taluka

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does not belong to the plaintiff as the document of Form -2 is not the title document and it is a Gaunkar Book and relied upon the decision of **Hon'ble High Court of Bombay Bench at Aurangabad in Second Appeal No.780 of 2005** - Wherein the Hon'ble High Court has discussed as to what is Gaunkar book and its terms in its notion is the calculation of an area of field as per the glossy of measurements terms in manual of land surveying.

9. Learned Advocate Shri. P. Kamat for the Plaintiff further contended that the Decree in Special Civil Suit No. 222/94/B is illegal as the suit was in respect of only Survey No.89/3 and the Decree is in respect of 89/3 and in regards to survey No.93/2,93/3 and 93/4 which was not the subject matter of the suit in Special Civil Suit No. 222/94/B and that thus there is fraud in the same and there are illegalities in the said Decree.

10. Per contra Learned Advocate Shri. R. Rao for the Defendants No.1 and 2 contended that it was a consent Decree and in view of Order 23 of CPC it is permissible.

11. In my considered view so far as the fraud in Decree is concerned it is larger Issue where a thorough investigation is required and evidence to that effect deserves to be lead and at

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this prima-facie stage one cannot directly jump to the conclusion of the fraud and illegalities as they are triable issue.

12. Learned Advocate Shri. R. Rao for the Defendants contended that the Plaintiff has failed to identify the suit properties and to show their title to the said property and hence the present Application deserves to be dismissed.

13. Per Contra Learned Advocate Shri. P. Kamat for the Plaintiff contended that the survey records does not show the Communidade lands as the Communidade is maintaining their own books of land owned by them.

14. To this contention, my opinion is that in view of consent terms filed by the Plaintiff and the predecessor in title of the Defendants No.1 and 2 wherein the consent Decree is obtained nowhere also mentions that the suit property originally belonged to the Defendants and during consent Decree the suit property was allotted to the Present Defendant No.3 who is predecessor in title of the Defendant No.1 and 2 and who has chosen to remain silent in the present proceedings as he did not appear. Hence, prima-facie some right of Plaintiff can be visualized without going into the merits of the case and the burden shall be on the Plaintiff on merits to prove the same. Moreover, Defendant No.1 and 2's right are flowing from the Consent Decree passed in Special Civil Suit

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No. 222/94/B and the said Decree is under challenge and not yet finalized.

15. Learned Advocate Shri. R. Rao for the Defendants further contended that the area of the suit property does not tally and hence there is dispute in area. All this aspects has to be seen on merits and prima facie, as the said properties are referred to in the consent Decree in Special Civil Suit No.222/94/B, this aspects has to be looked into on merits.

16. Learned Advocate Shri. R. Rao for the Defendants further contended that the Defendants had paid foro which has been accepted by the Communidade in one stretch and hence the present Application does not survive. Per contra learned Advocate Shri. P. Kamat for the Plaintiff contended that the mere acceptance of payment cannot envisage any title on the Defendants in view of the fact that the Decree itself is illegal and the said foro is based on the said Decree. In my considered opinion, this fact also deserves to be considered on merits as regards the payment of foro and how much was due and how much paid and when and how?

17. The contention of the Learned Advocate for the Defendants that the survey records reflect the names of the Defendants and hence prima-facie the case is in favour of Defendants, in my considered opinion, is devoid of merits, as

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the said names came in survey records only subsequent to the Consent Decree which is under challenge and pending before Hon'ble High Court.

18. The glaring point which invites my attention and drives to say that the prima –facie case is in favour of the Plaintiff is the condition in the consent terms which flows from the Consent Decree passed in Special Civil Suit No. 222/94/B is Conditions No.1 ,2 and 3 which reads as under :-

" (1)The defendant hereby agrees to allot in favour of the association of the Gauncars of the Communidade of Bambolim, 40 plots, each admeasuring 252 square metres, 16 plots being denoted under Nos. 13, 14 and 29 to 42 located in survey no. 93/2, 10 plots denoted under Nos. 9 to 11 and 21 to 23 located in survey no. 93/3, 14 plots being denote under Nos. 33 to 46 located in survey no.93/4 of Village Bambolim, Tiswadi Taluka, under village Panchayat of Curca, Bambolim & Talaulim as shown in the plans annexed hereto with boundaries of the plots marked in red colour ink.

(2) The defendant further agrees to allot in favour of the plaintiffs 5 plots, each admeasuring 252 square metres, the same bearing nos. 24 to 28 located in the survey no. 93/3 of the Village of Bambolim, Tiswadi Taluka under village Panchayat of Curca, Bambolim & Talaulim as shown in the above annexed plan of the said survey no. 93/3.

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(3) In consideration of the allotment and the handing over of the plots aforesaid free from payment of any consideration, development charges, and subject to the subsisting rights in terms of eth allotment as aforesaid, the plaintiffs hereby agree that they have no claim, right, title, interest, objection regarding the ownership and/or development of the properties bearing survey nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim".

19. Hence, it is crystal clear that the predecessor in title of the Plaintiff had to follow the condition No.1 and 2 of the terms and thereafter had to give consideration to the present Plaintiff which admittedly has not been done till date and hence the right of the Plaintiff is found to be alive as the same has not be complied by the Defendants themselves and Defendant went to do all other acts wherein the property was developed and plots were sold too, but without adhering to the conditions of the consent terms itself.

20. If the consent terms as was binding on the Plaintiff so was also binding on the Defendants too and which terms were condition precedent as can be read from the wordings of condition no.3 of the consent terms i.e "In consideration of allotment and handing over of the plots aforesaid free from payment of any consideration, development charges..... the

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plaintiff hereby agrees that Plaintiff have no right, interest, claim or title..." This condition clearly denotes that only upon consideration the present Plaintiff agrees that they have no right or interest of title to the present suit property, which in other terms means, if no consideration as per the terms is paid then the Plaintiff has right, interest, claim over the suit properties.

21. The predecessor in title of the Defendant No.1 and 2 ought to have complied the conditions of the Consent Terms and then do other development and sell which he failed to do so.

22. Moreover, the right of the present Defendant No.1 and 2 who are contesting hotly in the present matter flows only through the Sale Deed executed by Defendant No.1 subsequent to the Consent Decree passed in Special Civil Suit No.222/94/B and which is yet to be finalized. Hence, when the said Special Civil Suit No.222/94/B is sub-judiced and Decree is under challenge the Court has to look into the aspect of maintaining the Suit property till the disposal of the present Suit and it also becomes incumbent to verify about the Decree as the fate of the entire suit lies on the Decree of SCS No.222/94/B which is presently under stay.

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23. Hence, I have no hesitation to state that there is prima-facie case against the Defendants and in favour of the Plaintiff and hence Point No.1 of the determinations stands answered in Affirmative.

Point no.2:

24. In order to prove the point No.2 the Plaintiff had to prove that there is irreparable loss and injury caused to them if the present Application for temporary Injunction is not allowed.

25. Learned Advocate Shri. R. Rao for the Defendants contended that there is no irreparable loss and injury to the Plaintiff as the Plaintiff can be compensated for the same as the Consent terms itself depicts compensation to the Plaintiff and drew my attention to Condition No.7 of the Consent Decree dated 21/11/1998 passed in Special Civil Suit No.222.94/B.

26. If one peruses the condition No.7 of the Consent Decree which reads as under :-

" (7)The defendant shall hand over the sub divided plots as aforesaid and as agreed upon after obtaining final NOC on or before the expiry of 36 months from the date of execution of these presents, time being the essence of the terms, failing

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which the defendant shall be liable to pay a sum of Rs.300/- as damages in respect of each plot and per month of delay".

27. The said amount of Rs.300/- is stated to be as damages in default to handover the plots, however, it also mentions that the said plots to be handed over within 36 months and time being essence of contract. Admittedly the said time has already lapsed for the Defendants to comply with the Consent Decree and hence it cannot be said that there is no irreparable loss being caused to the Plaintiff as the compensation is stated in the Consent Decree. Damages are different from the words compensation. Damages are on account of failure which is in one way a sort of penalty and hence cannot be equivalent to saying that it will compensate the Plaintiff.

28. The contention of Learned Advocate Shri. R. Rao for the Defendant that if at all the Court is inclined to allow the present Application than it has to be only in respect of the 5 plots and not the entire property as in the Consent Decree the Plaintiff are to be allotted with only 5 plots and remaining 40 plots are allotted to the Gaunkars. This contention also in my considered opinion devoid of merits, I say so because, the Consent Decree itself is under challenge and the subject matter of the present suit is part of the Consent Decree and the title to the Defendants are based on the Consent Decree only and

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hence the present Temporary Injunction cannot be restricted only to the 5 plots supposed to be allotted to the Plaintiff which was condition precedent which otherwise has not been done within the stipulated time frame as reflected in condition No.7 of the Consent Decree passed in Special Civil Suit No.222/94/B.

29. If the present Temporary Injunction is not granted the definitely irreparable loss and injury will be caused to the Plaintiff as the property is under constant development and the nature of suit property gets changed. Hence Point No.2 of determination stands answered in Affirmative.

POINT NO.3:-

30. In order to prove this point of determination it is necessary to verify in whose favour the balance of convenience tilts. In the instant case admittedly, the Consent terms and Decree is not fulfilled in toto and there are some aspects where time was essence of contract was not followed and which affected the Plaintiff and hence the balance of convenience tilts in favour of the Plaintiff.

31. In view of above, I am inclined to pass the following :

O R D E R

Defendant no. 1 and 2, their agents, servants or any other persons acting through them are restrained by way of

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temporary injunction from starting any development and construction activities or changing the nature of the suit property and alienating, transferring the suit property under survey no.93/2, 3, 4 of Village Bambolim in any manner till the disposal of the suit.

Pronounced in open court.

(**Artikumari N. Naik**)
Ad-hoc Senior Civil Judge,
'A' Court, Panaji

Panaji.
Dated:13.03.2020
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